

do so. For purposes of filing an amended pleading, Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

17. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE PLTFs 1ST AMENDED COMPLAINT**
FILED BY: TENET HEALTHCARE CORPORATION
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendant Tenet Healthcare Corporation. Based on the Court's concurrent ruling sustaining Dr. Malani's demurrer, the motion to strike is **DENIED AS MOOT**.

18. 9:00 AM CASE NUMBER: C25-03269
CASE NAME: SAMUEL CHEN VS. ORACLE AMERICA, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ORACLE AMERICA, INC.
TENTATIVE RULING:

Defendant Oracle America, Inc. ("Oracle") filed a demurrer to plaintiff's Complaint on December 18, 2025 (the "Demurrer"). The Demurrer was set for hearing on May 11, 2026.

Background

Oracle's Demurrer demurs to the sole cause of action for Breach of Contract pled in the Complaint (the "Complaint") filed by plaintiff Samuel Chen ("Mr. Chen") on November 6, 2025. The Breach of Contract cause of action alleges that "[t]he Plaintiff entered into a contract with the Defendant on May 15, 2025, that required the Defendant to deliver a payment processing application for his small business by September 1, 2025" and, thereafter, breached that alleged contract. See Complaint, Attachment.

Oracle's Demurrer contends that this cause of action fail to state facts sufficient to constitute a cause of action against Oracle "because there is no contractual privity between Plaintiff and Oracle."

The motion is unopposed. Indeed, at the recent Case Management Conference the Court granted leave to amend, as Plaintiff indicated his intention to amend the operative following discussions with